

H Embellishment (Pvt) Ltd

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED AS FOLLOWS:

DURATION

1) This Agreement shall be operative for a period of **01 Year** commencing from 1st January 2020 and ending on 31st December 2020 (hereinafter referred to as the "**Term**") and renewable at the discretion of the Client in writing.

THE SERVICES

2) The Contractor shall provide the janitorial services morefully described in **Schedule 2** [Description of the Services & Service Levels] hereto (the "**Services**") to the location/s specified by the Client located at No. 61, Lake Road, Maharagama. and or other locations that may be informed by the Client in writing from time to time (hereinafter referred to as the "**Premises**").

3) In the event of addition of new locations by the Client other than as stated at Clause 2 above, the same terms and conditions set forth herein shall apply. The rates and charges in respect of the new locations shall be mutually agreed by the parties in writing at the time.

4) Subject to any variations made by the Client, the Contractor shall during the Term provide continuous and uninterrupted Services in an efficient and professional manner.

5) The Contractor shall ensure and be responsible for the overall cleanliness of the Premises and cleanliness and hygiene of the Contractor's employees including uniforms, to the satisfaction of an officer of the Client duly authorised on that behalf (hereinafter referred to as the "**Location Manager**").

6) The Contractor shall provide the Services to all areas of the building including corridors, service areas, stores, and other areas of the Premises as notified by the Location Manager.

7) A senior manager of the Contractor should meet the Location Manager at least once a month and submit a quarterly report (in a pre agreed format) to the Location Manager on the issues identified and status of them at the end of every quarter.

8) The Contractor shall ensure that the level of Supervisor involvement shall be in line with the requirements stipulated in Schedule 2 hereof.

9) The Contractor without the prior approval of the Location Manager of the Client shall not deploy or re-assign any of the personnel of the Contractor assigned to such location within the Premises.

10) The materials and equipment provided by the Contractor should be of a good quality and be in proper working condition and the Contractor should always maintain adequate stocks of material at the Premises for an uninterrupted service.

OBLIGATIONS OF THE CLIENT

11) The Client shall provide the Contractor and its authorised personnel as aforesaid access to the Premises during the week at the following times for the proper performance of the Services;

12) From Monday to Saturday - **DAY Shift** - from 7 am to 5 pm (8 personnel of the Contractor)

From Monday to Friday - **NIGHT Shift** - from 7pm to 5 am (4 personnel of the Contractor) as required for the proper performance of the Services at the Premises,

13) In the event of any investigation or inquiry undertaken by the Contractor or any matter connected with this Agreement, the Client shall give all assistance to the Contractor in recording statements from the Client's staff and make available any document, etc. connected with such investigations or inquiry.

PAYMENT

14) The Client agrees to pay the Contractor at the monthly rates stipulated in **Schedule 1** for the said Services including material and equipment which amount may be paid by cheque within fifteen (15) days of the receipt of the invoice. The rates shall remain fixed during the Term and the parties hereby agree to meet in good faith to review the rates in the event that the Government increases/decreases statutory and/or regulatory decisions pertaining to minimum wages, taxes and levies and/or statutory deductions. Contractor shall notify Client of any such regulatory measures along with copies of such relevant Gazette Notifications.



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15) The monthly rates contained in Schedule 1 shall be inclusive of all rates, taxes and levies payable on such rates except for VAT.

16) The Client shall be entitled to deduct any withholding taxes on all the Services provided, if required to do so under Statute or regulations there under and currently in force, subject to any directions from the Inland Revenue submitted by the Contractor exempting such deduction.

17) The Client shall at its discretion charge the Contractor the following amounts as liquidated and ascertained damages for failure to provide suitable personnel as agreed in the contract between the Client and the Contractor;

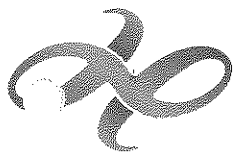
- (a) An amount equal to the one day's payment for labor for each personnel not on duty for a shift as duly noted by any official of the Client;

For the purpose of clarity, it is agreed between the parties that if the Client is deprived of Services for a period of more than 24 hours due to different personnel not being on duty consecutively, the Contractor shall be liable to pay liquidated and ascertained damages at a rate of 125% the shift rate for each personnel irrespective of the fact that each personnel only failed to be on duty for one shift;

The relevant shift rate/per person rate for this purpose is determined by dividing the total cost among the contracted number of personnel including the supervisor and obtaining a charge per person. The aforementioned amounts shall be recovered at the discretion of the Client by deducting from amounts due to the Contractor.

THE PERSONNEL OF THE CONTRACTOR

18) The Contractor shall provide trained and competent personnel who are capable of providing the Services in an efficient and diligent manner (within the age group as per the Table below) with due care and to the satisfaction of the Client. The Contractor shall provide the credentials of key supervisors proposed for the Premises.



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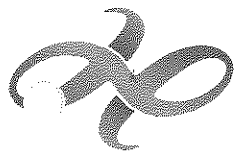
Category	Age limit	Description
Supervisory level	25-50	• Free from serious and contagious diseases • Physically and mentally fit • Preferably energetic individuals
Janitor (Toilet cleaner, general cleaner)	18-50	• Free from serious & contagious diseases • Physically and mentally fit • Preferably energetic individuals

All employees should be attired in their respective uniforms and footwear at all times whilst on duty in order to be identified easily.

In the event the Client is not satisfied with a personnel deployed at the Premises, the Contractor shall immediately take steps to replace that personnel.

19) The personnel deployed at the Premises of the Client by the Contractor in pursuance of this Contract shall be employees of the Contractor and the Contractor shall be responsible for all statutory obligations in regard to its personnel including that of payment of Budgetary Relief Allowances, Employees' Provident Fund contributions, Employees' Trust Fund contributions, and compliance with Wages Boards orders and regulations, Work men's Compensation, etc. and will hold the Client indemnified and harmless against any prosecution, fine, imposition whatsoever in that respect (it being expressly agreed that the Contractor will ensure that all its personnel will be recruited on the basis that their employer is the Contractor and not the Client). The Contractor shall submit proof of payment as aforesaid on a quarterly basis and in particular a copy of the "C" form acknowledged from the Labour Department (EPF Branch) on a monthly basis and the yearly statement issued by Central Bank in relation to the payment of EPF.

The Contractor shall indemnify and hold harmless Client from any claims, damages arising in relation to the non-payment of EPF/ETF and any other statutory dues as aforesaid.



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20) The normal number of Janitorial personnel to be deployed at the Premises of the Client and their number of hours per shift are contained in **Schedule 1**.

21) The Contractor shall furnish the Client with a list of all the personnel deployed within its Premises at any given time during the Term and update the list from time to time as required. Further, the Contractor shall submit photocopies of National identity cards, clearance reports (Gramasevaka/ police) of all the personnel deployed within the Client's Premises if requested by the Client on the execution of the Contract and update such from time to time as required. The list shall further contain information such as the name, National Identity Card Number, role, date of employment of each of such personnel, the period for which she/he is required to attend the Premises and such other information as may be requested by the Client from time to time.

22) Further, the Contractor should provide a police report for all staff members deployed, to prevent the possibility of theft or any sort of damage to the Client's property or employees

23) Any employees detailed by the Contractor for the performance of the Services and deployed at the premises of the Client shall at all times maintain polite relations in their dealings with the employees, guests and customers of the Client and with the members of the public having dealings with the Client and shall conduct themselves properly.

24) The Contractor should assign separate employees wherever necessary for:

- i. Cleaning of toilets, wash rooms, office area and other services mentioned in Schedule 2

25) It shall be the responsibility of the Contractor to ensure that its employees shall at all times be neatly and properly attired in uniform as per the requirements of the Premises (provided at the cost and expense of the Contractor).

26) The Contractor and personnel of the Contractor should not have any unofficial dealings with the Client's staff and vice versa.



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27) It shall be the responsibility of the Contractor to ensure that its personnel are courteous in their conduct and are of an honest and sober disposition.

28) The Contractor shall ensure that its employees strictly follow the rules, regulations and code of discipline applicable to the employees of the Client whilst at the Premises and/or performing the Services and that they do not at any time cause any annoyance or nuisance to the customers of the Client or to the servants or agents of the Client.

29) The Client reserves the right to request the Contractor to remove any of the Contractor's personnel from the premises of the Client and the Contractor shall do so immediately and without dispute. In the event of such removal a replacement shall be provided to the Premises within 4 hours to ensure an uninterrupted service to the Client.

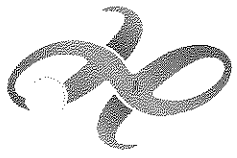
30) As agreed with the Client, Contractor shall ensure that an employee of the Contractor, being a Supervisor is present at all times to supervise the personnel of the contractor deployed at the Premises. This Supervisor shall report to the Location Manager on a daily basis.

31) Contractor's Personnel at the Premises should be ready to provide "minor" additional services which do not require additional staff, at no extra cost. These additional services are on a one-off basis and that are not routinely executed.

32) The Contractor shall adhere to and shall ensure that its employees adhere to the instructions given by an officer of the Client duly authorised in that behalf from time to time in relation to all the operational requirements.

33) The Contractor or its personnel shall not act in any manner, which is prejudicial to the image of the Client whilst providing the Services.

34) The employees of the Contractor should report to work on the specified time assigned to them at each location without delays/absenteeism. In the event of absenteeism, additional personnel (of a similar/higher level of capability) should be substituted in order to meet the requirement within the agreed timelines as per the Contract with the Location Manager.



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35) All material and the equipment needed to provide the Services should be provided by the Contractor at its own cost and expenses after being agreed by the Client under the Contract. These materials should be of a good quality and be the brands in the proposal submitted by the Contractor and be in proper working condition at all times and the Contractor should always maintain adequate stocks of the required material and equipment to ensure uninterrupted service.

36) The Contractor shall also ensure that the personnel are provided with the necessary safeguards including rubber gloves etc to protect the personnel from being harmed/affected from the materials used for the purpose of this Agreement.

LIABILITIES, WARRANTIES & INDEMNITIES

37) In the event of the Contractor failing to comply with any of the Services, with written intimation to the Contractor the Client shall be entitled to obtain the said Services from elsewhere and recover the cost of so obtaining the Services from elsewhere by deducting such costs from any amounts due to the Contractor from the Client.

38) The Contractor or its employees shall have no claims whatsoever against the Client in case of injury to or the death of the employees of the Contractor and the Contractor shall indemnify and at all times keep the Client indemnified on this account.

39) The Contractor shall indemnify and keep indemnified the Client against all actions, proceedings, costs, expenses, claims and demands in respect of any act matter or thing done or omitted to be done by the Contractor in contravention of any laws of Sri Lanka during the provisions of the Services and from and against all costs, expenses, loss or damage whatsoever arising in relation to any liabilities solely attributable to the negligence or default of the employees agents or contractors of the Contractor, due to any defect in the Services, and/or any breach of the provisions of the Contract.



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40) In the event of any loss or damage to any property at the Premises at any time during the currency of this Agreement resulting from the negligence or misconduct of the Janitorial personnel employed by the Contractor, the Contractor shall pay compensation and make good to the Client such loss/or damage suffered by the Client within 30 days of such notice loss/damage (without looking to the Client's insurer for indemnification), whether the property lost or damaged belonged to the Client, its employees or its guests. The quantum of such loss or damaged shall be determined by the replacement cost/existing market value of such property as determined by the Client.

41) If the supplied Services do not meet the required service levels, the Contractor shall be liable to replace the assigned personnel at no extra charge within 24 hours of such notice. The Contractor will also be legally responsible to pay any loss suffered by the Client as a result of the personnel's failure of meet the required service levels or in the Client obtaining replacement services.

INSURANCE

42) During the Term, the Contractor shall obtain and maintain the following insurance policies in respect of all work its employees deployed at Premises of the Client:

- i. Workmen's compensation policy.
- ii. Public Liability Insurance

The Contractor shall be liable to make good to the Client any loss or damage that may be caused or suffered by the Client due to any act of dishonesty or negligence, breach of this Agreement on the part of the Contractor's Janitorial personnel.

TERMINATION

43) If the Contractor wishes to terminate the said Contract without there being a breach on the part of the Client of its obligations here under the Contractor shall give Two (2) month's notice to the Client thereof.



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44) The Client may terminate the Contract at any time without adducing any reason by giving two (2) month's notice to the Contractor or one (1) month's monthly charges in lieu thereof.

45) Either Client or the Contractor shall have the right at any time by giving notice in writing to the other party to forthwith terminate the Contract in any of the following events:

- (i) If either party hereto shall commit or allow to be committed a breach of any of the conditions contained therein; PROVIDED ALWAYS that in the case of a breach capable of being remedied, such right of termination shall not be exercised unless the party in breach of the Contract shall have failed to make good to the satisfaction of the other party such breach, within fourteen (14) days after that other party has served notice in writing on the party in breach setting out the nature and particulars of the breach and requiring the party in breach to correct it immediately; or
- (ii) If either party enters into liquidation whether compulsorily or voluntarily otherwise than for the purpose of amalgamation or re-construction or compounds with its creditors or takes or suffers any similar action in consequence of debt

46) The Contractor shall vacate the Premises at the termination or sooner determination of this agreement and shall ensure that all its equipment and personnel are also vacated forthwith.

GENERAL

47) The Contractor hereby expressly acknowledges that the Client has only contracted by this Agreement for the provision of Services at the Premises listed in this Agreement and in the event of the Client commencing business elsewhere, the Client may but is not obliged to obtain the Services for such new premises from the Contractor.

48) This Agreement shall be governed and construed by the laws of Sri Lanka and the parties agree to submit to the exclusive jurisdiction of the Courts of Sri Lanka.



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49) The Contractor shall maintain strict confidence and secrecy in respect of all information of a proprietary nature received by it directly or indirectly pursuant to this tender and shall use its best endeavours to procure that its respective employees maintain strict confidence and secrecy in respect of such information.

50) The Contractor shall not assign this tender or the Contract to any third party without prior written approval of the Client.

51) Neither party shall be liable for acts beyond the reasonable control of the respective party and without their fault or negligence including but not limited to war, Invasion, Act of foreign Enemy, Hostilities (whether war be declared or not), civil war, rebellion, Insurrection of military or usurped power or conspiracy for the purpose of overthrowing a lawfully constituted government, earthquake, flood, typhoon, hurricane, tornado, cyclone or other convulsions of nature or atmospheric disturbances or any act of god, riot strike, and civil commotion.

52) This Agreement supersedes all previous agreements between the parties in respect of the Services. No other terms or conditions whatsoever in nature shall be included or implied.

53) The contents of this Agreement are confidential and that such confidentiality shall be maintained.

54) The Contractor shall represent and warrant that at all times it shall;

- (a) observe internationally accepted treaties relating to the protection of human rights; and
- (b) observe conditions of labour not less favorable than those conditions established for the trade or industry; and
- (c) not use child or forced labour; and
- (d) not engage in any activity which amounts to discrimination on the basis of race, ethnicity, color, national origin, sex, disability, veteran status, or age.
- (e) not offer, receive, agree to pay or cause the payment by another person of any money or anything of value for the purpose of influencing, improperly or unlawfully any act, decision or judgment of any person relating to the performance of the business.



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IN WITNESS WHEREOF, the parties have caused their Common Seals to be affixed hereunto and to two others of the same tenor and date as these presents at Colombo on date stated above.

H EMBELLISHMENT (PVT) LTD
By its Authorized Signatory

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For and on behalf of the RST MAINTENANCE Janitorial Cleaning Service
By its duly Authorized Signatory

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Witnesses:

- 1.
- 2.



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Schedule 1

Company	Location	No of total janitors	No of shifts	No of Supervisor (s)/ hrs	Service days per week	No of service hrs/Day	Charge per month (Ex- VAT)
H-Embellishment (pvt) Ltd	61, Lake Road, Maharagama	12	2	1	6	10	373,500.00

Schedule 2 : Services & Service Levels

Labour

	No of Personnel	Number of hours per shift	Working times
Supervisors	1	10	Day - 7.00am - 5.00pm Night - 7.00am - 5.00pm
Toilet Cleaners (Male)	1	10	
Toilet Cleaners (Female)	1	10	
General Cleaners (Male)	2	10	
General Cleaners (Female)	1	10	
Gardeners	2	10	
Others (specify)	1	10	

54)OVER TIME

Over time work requirement will be inform by the administrative department of H-Embellishment (PVT)LTD. LKR162.40 Pre hour will be payed for number of over time hours worked.



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Equipment that should be provided by the Janitorial service provider (Eg- Vacuum cleaner, polisher, buffing machine...etc)

Please specify the number of units required

Equipment Type	Number of equipments required

Material provided by the janitorial service provider (Eg- Detergents, Air freshener, soap....etc)

Please specify an approximate quantity per month for each of the items

Material Type	Approximate quantity per month



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JANITORIAL SERVICES AGREEMENT

THIS AGREEMENT is made and entered into at Colombo in the Republic of Sri Lanka on this 1st of January Two Thousand and Twenty (2020)

By and Between

H-Embellishment (Pvt) Ltd a company duly incorporated under the Companies law of Sri Lanka and having its Registered Office at Level 23, West Tower, World Trade Centre, Colombo 1 and bearing Company Registration number PV 4899 (Hereinafter referred to as the "**Client**" which term or expression as herein used shall mean and include the said **H-Embellishment (Private) Limited** One Part and

RST MAINTENANCE Janitorial Cleaning Service a company duly incorporated under the Companies law of Sri Lanka and having its Registered Office/Principal Place of Business at No: No.95, Pahalagama, Palagala and bearing Company Registration number NCP/2013/35 (Hereinafter referred to as the "**Contractor**" which term or expression as herein used shall mean and include the said **RST MAINTENANCE Janitorial Cleaning Service** and its successors) of the **OTHER PART**.

WHEREAS the Contractor has represented and warranted to the Client that it has the necessary expertise, trained personnel and materials/equipment for the purposes of providing janitorial services and has submitted its proposal in this regard;

AND WHEREAS based on the above representations and warranties, the Client has decided to obtain the expertise of the Contractor for the purposes of providing the janitorial services more fully described in **Schedule 2** hereto for the premises of the Client situated at No.61, Lake Road, Maharagama. (hereinafter referred to as the "**Premises**") based on the terms and conditions hereafter set out and contained.